MEMORANDUM OF AGREEMENT

AL RYAN ALEJANDRE
Executive Director

KNOW ALL MEN BY THESE PRESENTS,

This Agreement, made and entered into this MAR 09 2020 day of _____ 2020, in the City of Manila, Philippines, by and between.

The **NATIONAL COMMISSION FOR CULTURE AND THE ARTS (NCCA)**, a government agency created by and pursuant to Republic Act No. 7356, dated April 3, 1992, with address at NCCA Building, 633 General Luna Street, Intramuros, Manila, represented herein by its Acting Executive Director, **AL RYAN S. ALEJANDRE**, hereinafter referred to as the **NCCA**.

- and -

CALYD T. CERIO
Awardee

CALYD T. CERIO a Filipino citizen, of legal age with postal address at No. 130, Zone 4, Mampirao, San Jose, Camarines Sur 4423, hereinafter referred to as the **AWARDEE.**

- and -

WITNESSETH

WHEREAS, pursuant to R.A. 7356, the **NCCA** is mandated to encourage the continuing and balance development of a pluralistic culture by the people themselves,

WHREAS, the **NCCA** shall extend financial and economic assistance such as subsidies, artist funds, and social security to promote cultural development and protect artists and cultural workers,

WHEREAS, the **NCCA** launched the **2020 NCCA RESEARCH AWARDS PROGRAM** which is an annual grant awarded to nineteen (19) proponents of the following categories MA Thesis (8 slots), Ph.D. Dissertation (4 slots); Individual Research (6 slots), Organization (1 slot), Community Research (3 slots);

BERNAN JOSEPH R. CORPUZ
Chief, PPFPD

WHEREAS, the objective of the **2020 NCCA RESEARCH AWARDS PROGRAM** is to assist the winners for each of the five categories stated above in completing their research project, based on the submitted research proposal, eligibility documents or the evidences of qualification for the research award or grant, including documents of Lead Researchers and Co-researchers recent and complete CV),

WHEREAS, the **AWARDEE** was declared the winner in the Individual Research Category last December 16, 2019, entitled **"Ethno-Medicinal Knowledge and Healthcare Practices of the Traditional Health Practitioners In the Remote East-Coastal Communities of Camarines Sur"** as evidenced by the Research Awards Program Committee' Certification, marked as Annex "A' and made an integral part of this Agreement,

LEA V. LUSTRE-DIBI
Witness

WHEREAS, the **AWARDEE** shall receive the amount of **Three Hundred Thousand Pesos (PhP 300,000.00)** gross, covered by Board Resolution No. 2020-221/2020-288 marked as Annex "B", chargeable to the **Program on Advancing the Value of Creative Excellence: Pagkamalikhain**, and subject to the applicable accounting and auditing rules and regulations.

WHEREAS, the writing of the manuscript by the **AWARDEE** shall be implemented within a period of eight months effective January 2020 – October 2020.

NOW, THEREFORE, the parties hereto have mutually agreed to undertake, execute and implement the writing project, according to the following terms and conditions:

SECTION 1. The total amount of **Three Hundred Thousand Pesos (PhP 300,000.00)**, which shall be subject to withholding tax of 20%, shall be released as follows:

A. The amount of **Seventy-Five Thousand Pesos (PhP 75,000.00) or 25%** of the grant, gross of tax, shall be initially released to the **AWARDEE** upon accomplishment of the following:

1) **Notarized Letter of Agreement**;
2) **Certification of Research Awards Program Committee**

B. The second tranche of **One Hundred Ninety-Five Thousand Pesos (PhP 195,000.00) or 65% of the grant**, gross of tax, shall be released to the **AWARDEE** upon compliance of the following:

1) **Midterm Progress Report** on the implementation of the Project;
2) **Summary of field research, initial findings of gathered data and collection of documentation with interview and discussion noted of resource persons;**

C. The final amount **Thirty Thousand Pesos (Php 30,000.00) or 10% of the grant**, gross of tax, shall be released to the **AWARDEE** of the completion of the project and compliance/submission of the following:

1) **One Hardbound Final Report of the Project, including a copy of the final output as appropriate and photo-documentation of the project**
2) **DVD** containing a non-editable PDF (Portable Document File) format of the Report;
3) **Research Assessment Report** prepared and approved by the Research Awards Program Committee; and
4) **Acceptance of Output** issued by the NCCA;

SECTION 2. All the aforesaid documents submitted by the **AWARDEE** to support the subject releases shall be reviewed and verified/certified by the **NCCA Project Development Officer** who shall directly supervise and monitor the implementation of the writing project;

SECTION 3. The **NCCA** shall be given the first option to publish the completed manuscript to the rights of the **AWARDEE** to the copyright of the work.

SECTION 4. Copyright of the Manuscript shall belong to the researcher; Provided, that: the **AWARDEE**, in the publication of the works – in whole or in part – shall prominently acknowledge the grant given by the NCCA for the completion of the project. Publication shall include any or all kinds of rendering of the works to the public, such as, but not limited to, book or internet publication, audio tapes, CD ROM, and all other similar communication of the works in current or emerging media.

SECTION 5. Any publication arising from the activities undertaken of and pursuant to this Agreement, or use of any data or information acquired or derived there from shall clearly establish and identify the **NCCA** and the **AWARDEE** as the sources of the output.

SECTION 6. The **AWARDEE** shall integrate/weave in the transmission of values that would instill honesty, integrity, hard work and concern for the environment in the various art forms e.g. songs, literary pieces, performances, exhibitions, seminars, research, documentaries, etc., and in all other cultural activities organized for public's appreciation.

SECTION 7. The **AWARDEE** shall be willing to disseminate the project output in print, media, or appear in radio or television as may be requested by the **NCCA.**

AL RYAN ALEJANDRE
Executive Director

CALYD T. CERIO
Awardee

BERNAN JOSEPH R. CORPUZ
Chief, P/PFPD

LEA V. LISTRE, DE
Witness

SECTION 8. Should the **AWARDEE, FOR ANY REASON,** fail to finish the writing project within the period agreed upon, he/she may request for an extension to complete the manuscript, in the event he/she fails to complete the same within the period and extension agreed upon, he/she will be obligated to refund **ALL** amounts released to her by the **NCCA plus damages and interest, if the circumstances so warrant.**

SECTION 9. This project shall be implemented on January 2020 until October 2020, after which time, the Project shall have been completed with all the terms and conditions therein satisfied.

SECTION 10. The **NCCA** will officially acknowledge its acceptance of the completed Project if the results indicated in the evaluation reports so warrant.

SECTION 11. To ensure the effective implementation of this Project, the NCCA shall assign a counterpart staff/s which shall coordinate and monitor on a regular basis the progress of the Project.

SECTION 12. In the event of unforeseen circumstances/event detrimental or prejudicial to the fulfillment of this Agreement and attainment of its objective, the parties hereto shall be accordingly notified in writing to enable them to adopt remedial measures.

SECTION 13. In the event of unjustified failure of the **AWARDEE** to complete the writing Project in accordance with the terms and conditions of this Agreement, or any other breach/violation thereof committed by the **AWARDEE**, the NCCA may terminate this Agreement without prior notice. However, after the decision of the **NCCA** to terminate this Agreement, notice shall be sent to the **AWARDEE** indicating when the actual cancellation took effect and the reasons therefor.

SECTION 14. Any amendment/modification of this Agreement or its renewal, shall not be valid unless reduced in writing and signed by both parties.

SECTION 15. The failure of a party at any time to insist upon strict performance or any condition, promise, agreement or understanding set forth herein shall not be construed as a waiver or relinquishment of the same or other condition, promise, agreement or understanding at a future time

WHEREFORE, the parties hereto have hereunto affixed their signatures on the ____ day of _____, 2020 in the City of Manila, Philippines.

NCCA

AL RYAN ALEJANDRE
Executive Director

AWARDEE

CALYD T CERIO
Researcher

Signed in the Presence of:

BERNAN JOSEPH R CORPUZ
Chief, Policy/Plan Formulation and Programming Division

LEA V. LUSTRE
Witness

Certified Funds Available in the amount of PhP 300,000.00 gross (Board Resolution No. 2020-221/2020-288)

HERENCIO Y. LLAPITAN
Chief, NEFCA

DS # 02-104375-9030-02-0185
dtd - 2-4-20

A C K N O W L E D G M E N T

Republic of the Philippines)
City of Manila) S. S.

BEFORE ME, on this _____ day of _____, 2020, personally appeared AL RYAN ALEJANDRE., with his respective GSIS ID No. MAR 0 9 2020 _____, and CALYD T. CERIO with his Passport No. _____, known to me to be the same person/s who executed the foregoing instrument, and they acknowledged to me that the same are their free will and voluntary act and deed.

This instrument, consisting of four (4) pages, including the page on which this acknowledgment is written and annex thereto, has been signed on the left margin of each and every page thereof by the affiants, and their witness, and sealed with my notarial seal.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my notarial seal, the day, year and place above written.

ATTY. GARY CAMITAN AURE
Notary Public
NOTARY PUBLIC, ROLL NO. 60777
PTR No 9132077 Issued on Jan 3, 2020 Valid Dec 31, 2020 Manila
IBP Lifetime No 015699 Issued on Feb 2 2016
Commission No 2020 021 Issued on Jan 31, 2020 Valid Dec. 31 2020 Manila
MCLE No VI-0006796 Issued on Feb 20, 2018 at Pasay City Valid Until April 14, 2022
Office Address: G/F YMCA Building, 350 Antonio Villegas Street, Ermita, Manila

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